

24STCV00863 24STCV00863

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 24STCV00863 Hearing Date: August 4, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Yadira Davis

;

Plaintiffs,

vs.

Farmers Insurance Exchange

;

Defendant.

Case No.:

24STCV00863

Hearing Date:

August 4, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
for Summary Judgment

MOVING PARTY: Defendant Farmers Insurance Exchange

RESPONDING PARTY: No response.

Motion
for Summary Judgment

The court
considered the moving papers filed in connection with this motion. No
opposition was filed.

REQUEST FOR JUDICIAL NOTICE

Defendant Farmers Insurance Exchange
("Defendant") requests that the court take judicial notice of (1) the Complaint
in this action filed January 12, 2024; (2) the Amendment to Complaint filed in
this action February 29, 2024; (3) the Amendment to the Complaint filed in this
action March 20, 2024; and (4) Defendant's Answer to plaintiff Yadira Davis
("Plaintiff")'s Unverified Complaint filed April 16, 2024.

Defendant's
requests are GRANTED pursuant to Evidence Code section 452, subdivision (d).

LEGAL STANDARD

The purpose
of a motion for summary judgment or summary adjudication "is to provide courts
with a mechanism to cut through the parties' pleadings in order to determine
whether, despite their allegations, trial is in fact necessary to resolve their

dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant or cross-defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.) “When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Id. at p. 467; Code Civ. Proc., § 437c, subd. (c).)

DISCUSSION

Defendant moves the court for an order granting summary judgment on Plaintiff's Complaint against Defendant for breach of contract.

“The standard elements of a claim for breach of contract are (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom.” (Abdelhamid v. Fire Ins. Exchange (2010)

182 Cal.App.4th 990, 999 [citations and quotations omitted].) In the insurance context, a policyholder must show an entitlement to a benefit that the insurer refused to pay. (*Behnke v. State Farm General Ins. Co.* (2011) 196 Cal.App.4th 1443, 1468.) The insured has the burden of proof to establish that the claim is within the basic scope of coverage, and the insurer has the burden of establishing that the claim is specifically excluded. (*MacKinnon v. Truck Ins. Exch.* (2003) 31 Cal.4th 635, 648.) The insurer must draft exceptions and exclusions to be “conspicuous, plain, and clear.” (*Ibid.*)

The court finds
that Defendant has met its burden to show that Plaintiff’s claim for breach of contract has no merit.

Plaintiff alleges
that Defendant wrongfully denied legitimate claims for water and wind damage on or about January 11, 2023. (Complaint ¶ BC-2.) Defendant presents evidence that Plaintiff owns a parcel of real property at 1451 W. 104th Street, Los Angeles, California, which is insured under a Farmers Smart Plan Home Policy, underwritten and issued by Defendant. (Separate Statement Nos. 1-2, Brenner Decl. ¶¶ 7, 20, 22-23; Loehr Decl. ¶¶ 3-5; Defendant’s Exs. A, N.) Defendant presents evidence that Plaintiff reported a property damage claim on January 11, 2023 for water damage that occurred on January 7, when rainwater entered the separate garage/ADU through the roof. (SSUMF No. 9; Brenner Decl. ¶¶ 8, 22-23, Loehr Decl. ¶¶ 3, 4, 7; Ex. B.) Defendant’s Senior Claims Representative Alexis Williams inspected the property on January 17, 2023. (SSUMF No. 11; Brenner Decl. ¶¶ 9, 16, 22-23; Loehr Decl. ¶¶ 3, 4, 9, 17; Exs. C, J.) The inspection revealed no wind or hail damage on the roof of the structure, and instead found evidence of wear and tear throughout the roof. (SSUMF No. 13; Brenner Decl. ¶¶ 9-10, 16, 22-23, Loehr Decl. ¶¶ 3-4, 10-12; Exs. C, D, J.)

Defendants also present the insurance policy
(the “Policy”) that is the subject of this action, which insures direct physical loss or damage to the property described in the policy subject to specific exceptions and exclusions. (SSUMF Nos. 5-6; Ex. A., § I [Loss or Damage Insured].) The Policy does not insure loss or damage “which is wear and tear, deterioration or mechanical breakdown” except if caused by fire or lightning. (SSUMF No. 7; Ex. A., § I [Uninsured Loss or Damage and Excluded Causes of Loss or Damage], subd. A.) The Policy also excludes damage which is water damage, except if caused by fire or lightning or falls within the Limited Water Coverage extension of coverage. (*Id.*) The Policy’s Limited Water

Coverage extension provides for coverage of damage to the property “from direct contact with water, but only if the water results from,” among other enumerated causes, “(2) hail, rain, snow or sleet entering through an opening in the roof or wall of a building structure, and only if the opening is first caused by damage from the direct force of the following ... [¶] i. windstorm.” (SSUMF No. 6; Ex. A., § I [Extensions of Coverage].) Defendants present evidence that Plaintiff’s claim was denied because the investigation of the claim determined that the water damage to the property was caused by wear and tear to the roof allowing water to leak into the ceiling. (SSUMF No. 14 Brenner Decl. ¶¶ 10, 16, 22-23; Loehr Decl. ¶¶ 3, 4, 9-12; Exs. D, K.) As Defendants state, wear and tear is expressly excluded from coverage under the Policy’s plain language. Defendants have thus demonstrated that Plaintiff cannot prevail on this cause of action because Defendant’s denial of coverage was within the express terms of the Policy.

Because Plaintiff has not responded to this motion, the court finds that Plaintiff has not met her burden to demonstrate that there is a triable issue of material fact as to her claim for breach of contract. The court therefore grants Defendant’s motion for summary judgment.

ORDER

The court GRANTS defendant Farmers Insurance Exchange’s motion for summary judgment.

The court orders that all future hearings are vacated.

The court sets a hearing on an Order to Show Cause Re: Entry of Judgment for October 5, 2026, at 8:30 a.m. in Department 513.

The court orders defendant Farmers Insurance Exchange to prepare, lodge, and serve a proposed judgment within 10 days of the date of this order.

The court orders defendant Farmers Insurance Exchange to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 4, 2026

Robert B. Broadbelt III

Judge of the Superior Court